



File No.: EXP202212261

RESOLUTION No.: R/00365/2023

Considering the complaint filed on October 2, 2022, with this Agency by Mr. A.A.A. against UNITARIMA, S.A. for not having duly attended to his right of rectification.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) exercised the right of access before UNITARIMA, S.A. with NIF A82323049 (hereinafter, the respondent).

Once this right of access was attended to, the complainant again addressed the respondent requesting the rectification of "Signature of work report No. XXXXX dated 20/01/2022 where it indicates through my signature that I am the responsible person of the construction company A.A.A. when that is not correct," without receiving a response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to provide a response to the complainant and to this Agency within one month.

The respondent indicates that, once the right of access was attended to, a request was subsequently addressed, dated June 20, 2022, for the right of erasure on June 23, 2022, and an exercise of rectification, which has led to the present procedure.

It states that, on July 19, 2022, an email was sent to the complainant, as this was the means used to exercise the right, explaining that the rectification of his signature is not appropriate.

"According to what is stated in the GDPR, personal data must be rectified when it is incorrect. The data of the signature we understand is correct, since according to you it is your signature, but you have included it in a document where it should not appear (the work report you refer to), since as indicated in the document itself (CONFORME, The person in charge of the Construction Company) that is where it should be signed."

C/ Jorge Juan, 6

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28001 – Madrid

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2/6

the responsible party and not another person. The only way to "rectify" that document would be to remove its signature by some manual means, as it is a paper document (which would essentially be the removal or cancellation of the data). However, this document has been submitted by you in a claim filed with the AEPD, which has resulted in the opening of File No. EXP202205355 against our company, thus being part of the documentation of said file. Therefore, as we indicated in our response to your cancellation request, until the procedure initiated by the AEPD is resolved, we cannot modify these data, nor cancel or rectify them. Once the procedure is concluded, we will proceed to cancel all your personal data, including Work Report No. XXXXX dated 20/01/2022, indicated in your cancellation request dated June 20, 2022, and in your rectification request dated June 30, 2022."

Given that the response provided to this Agency by the data controller does not include the necessary communication that must be directed to the claimant, informing them about the decision made regarding the claim, on January 11, 2023, this request is reiterated for a response to be given to the affected party regarding the claim made and for a copy of that response to be sent to this Agency. The claimed party has provided a copy of the new email sent to the claimant on January 12, 2023.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the

satisfaction of the claimant's requests, as the response to the requested right and its receipt was not credibly accredited. Consequently, on January 2, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the claimed entity a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate. This entity indicated, in summary, that it proceeded to respond to the claimant by email, the same means that the claimant had used to exercise the right.

"In both communications, the options for acknowledgment of receipt (receipt and reading) were activated, but as it is technically possible to deactivate these acknowledgment confirmations so that the sender is not informed, we understand that the recipient rejected the sending of these confirmations and we did not receive the evidence to demonstrate the sending of the exercise of the right of rectification."

In that email, they informed him that the rectification of his signature is not appropriate, that the data itself, that is, the claimant's signature is correct and cannot be rectified. "The right of rectification requested by the claimant in accordance with Article 16 of the GDPR refers to inaccurate personal data and in this case, the data is correct, only that it is in a

C/ Jorge Juan, 6

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28001 – Madrid

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3/6

location that does not correspond to him and that, on the other hand, was placed there by him and not by us; therefore, what he seeks in his writing is a rectification of the location of the data, not the data itself, which is correct (...)"

FOURTH: On January 26, 2023, a document from the claiming party was received by this Agency, providing a copy of the email sent by the responding party dated January 12, 2023.

FIFTH: After examining the allegations presented by the responding party, they are to be communicated to the claiming party, so that, within a period of fifteen working days, they may formulate any allegations they deem appropriate.

The claiming party reiterates that "(...) my data has not been deleted," as indicated in the response from the responding party.

Additionally, it points out, in relation to the "Proof of delivery" issued by the Postal Service of the document sent by the responding party, "(...) it is also communicated to the AEPD by Unitarima a piece of my signature that does not correspond to my signature and that someone has impersonated it (...)"

SIXTH: After granting a hearing to the responding party, it indicates that they have sent a document to the responding party, a copy of which is attached, as well as the acknowledgment of receipt. "(...) We proceed to inform the interested party that the right to deletion is granted as initially requested, understanding that the original procedure has concluded (...) regarding the right of access that was archived by the Spanish Agency for Data Protection and the successive claims regarding their right to rectification and then deletion have been responded to in a timely manner, although our arguments do not conform to the interested party (...)"

We proceed to inform the applicant that the data will not be deleted immediately, but that its processing will be limited (blocking the data solely for the purpose of its conservation) to address possible liabilities arising from the processing of their data (...)"

Regarding the statements that the signature appearing in the "Proof of delivery" from the Postal Service does not correspond to theirs, the responding party indicates that this circumstance should be verified with the Postal Service.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57,

both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions that

C/ Jorge Juan, 6

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4/6

are assigned in its article 57, among them, the obligation to enforce the Regulation and promote awareness among the controllers and processors regarding the obligations that fall upon them, as well as to address the complaints submitted by a data subject and investigate the reasons for them.

Correspondingly, article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and to demonstrate that the necessary response had been provided to the complainant, in the event of exercising the rights regulated in articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of the GDPR, regulated in article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding personal data protection are regulated in articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

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5/6

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the data subject's exercise of their rights, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to

requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: Article 16 of the GDPR, which regulates the right to rectification of inaccurate personal data, establishes the following:

"The data subject shall have the right to obtain from the data controller, without undue delay, the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

FIFTH: In the case analyzed here, the claimant exercised their right to rectification, arguing that they had signed a work report in a place that did not correspond to them.

During the processing of this procedure, although initially the responding party indicated that "(...) the only way to 'rectify' that document would be to remove their signature by some manual means, since it is a paper document," it later sent an email to the claimant indicating that they would proceed to address their right, stating that "(...) they will proceed to limit its processing (block the data solely for the purposes of its conservation) in order to address possible liabilities arising from the processing of their data (...)"

As a consequence of the above, it is considered that the claimant's request for their signature not to appear in the work report where they stamped it has been addressed, and therefore, it is appropriate to uphold, for formal reasons, the complaint submitted.

Regarding the claimant's statements that the signature appearing on the delivery proof issued by the postal service should be directed to the entity issuing that delivery proof to raise that issue.

In view of the cited provisions and others of general application,

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6/6

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against UNITARIMA, S.A. However, the issuance of a new certification by said entity is not warranted, as the response was issued late, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and UNITARIMA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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